

IN THE
COUNTY OF UTAH, STATE OF UTAH

State of Utah	Affidavit of Probable Cause
vs.	
GREENLAND, CODY WAYNE Date Of Birth: 11/04/1983 6132 W 9680 NORTH HIGHLAND. UT 84003	
Arrestee	

On 04/17/2020 19:06 the defendant was arrested for the offense(s) of:

	Offense Date	Offense Description	Enhancement	Statute	Severity	Court
1	04/17/2020	INTERFERENCE WITH PEACE OFFICER		76-8-305(1)(C)	MB	DST
2	04/17/2020	POSSESSION OR USE OF A CONTROLLED SUBSTANCE		58-37-8(2)(A)(I)	MB	DST
3	04/17/2020	POSSESSION OR USE OF A CONTROLLED SUBSTANCE		58-37-8(2)(A)(I)	F3	DST
4	04/17/2020	POSSESSION OR USE OF A CONTROLLED SUBSTANCE		58-37-8(2)(A)(I)	MA	DST
5	04/17/2020	USE OR POSSESSION OF DRUG PARAPHERNALIA		58-37A-5(1)	MB	DST

I believe there is probable cause to charge the defendant with these charges because:

Officers responded to the report of a suspicious male attempting to get into vehicles in the Target Parking area in American Fork. The male was also reported to be asking citizens to borrow phones and it was reported he had opened a car door to speak to a woman in the parking area. It was reported one of the vehicles for which he opened the door had left the area and as the vehicle was leaving, the male was yelling at the driver of the vehicle. The male was also reported to be looking into vehicles in the parking area. Officers made contact with the male in the Target parking lot based on the physical description given by the witness. Officers attempted to detain the male under suspicion of vehicle burglary and the male resisted.

It was discovered the male was later identified as Cody Greenland, a known drug user to local law enforcement of whom officers have had issues with resistance in the past. Greenland pulled away from officers as they made initial contact. He then refused verbal commands. While officers attempted to detain Greenland, he continued to resist and was tased. Greenland was taken into custody and a search of his person was conducted. Officers located two utility knives on his person. Greenland was discovered to be in possession of blotter paper wrapped in aluminum foil, syringes, a broken glass pipe as well as a bag with white crystal substance. Through training and experience, officers identified these items as consistent with drug paraphernalia. The white crystal substance was field tested and tested positive for Methamphetamine. Officers identified the blotter paper wrapped in aluminum foil through training and experience as consistent with LSD/Acid.

Officers discovered Greenland had been near a white car in the parking area registered to another known drug user. The witness stated Greenland had been standing next to the car with several bags. After Greenland was arrested, officers searched the bags and located correspondence for Greenland in a gray back pack which also contained items identified as drug paraphernalia (syringes, pipes, spoon, blow torch) as well as a container with leafy green substance that had the odor of Marijuana.

Greenland has a criminal history including prior convictions for Methamphetamine in the past which would enhance his possession charge.

By submitting this affidavit, I declare under criminal penalty of the State of Utah that the foregoing is true and correct.
/S/ Kinnaman, Caleb

Officer Name: AFCKINNA - Caleb Kinnaman

A sworn officer with: UT0250100 - American Fork PD

Agency Case 20AF02970

Probable Cause Entered: 04/17/2020 22:10

Probable Cause ID: 155327

Suggested Bail Amount:

SUBMISSION IDENTIFICATION INFORMATION

Booking Agency: Utah County Sheriff Office

Agency Inmate ID: 394705

Arrest Date/Time: 04/17/2020 19:06

SID: 1009251

FBI ID: 841397WB9

Booking Agency ORI: UT0250000

OTN: 59288746